*BY ORDER OF THE COMMANDER PACIFIC AIR FORCES REGIONAL SUPPORT CENTER*

*PACIFIC AIR FORCES REGIONAL SUPPORT CENTER INSTRUCTION 32-7001*

*29 AUGUST 2025*

*Civil Engineering*

# *LAND USE CONTROL MANAGEMENT*

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OPR: AFCEC/CZOP

Certified by: PRSC/Deputy Commander
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Supersedes: PRSCOI 32-7001, 13 June 2018

Pages: 9

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This instruction implements Air Force Policy Directive (AFPD) 32-70, *Environmental Considerations in Air Force Programs and Activities*, and is used in conjunction with Air Force Instruction (AFI) 32-7020, *Environmental Restoration Program*, and DAFMAN32-7003, *Environmental Conservation*. It prescribes the processes and responsibilities for the management of and compliance with land use controls on all Pacific Air Forces (PACAF) Regional Support Center (PRSC) installations, and the implementation of all land use controls for which the PRSC has responsibility. These land use controls result primarily from environmental restoration activities by PRSC and predecessor Air Force (AF) units, from Records of Decision (ROD) and Decision Documents (DD) recorded in the Environmental Restoration Program Administrative Record (AR) at Joint Base Elmendorf Richardson (JBER). It applies to all military and civilian organizations that occupy facilities or conduct activities on any PRSC installations. It does not apply to Guard and Reserve Units (unless they occupy or use PRSC installations). Refer recommended changes and questions about this publication to the office of primary responsibility using AF Form 847, *Recommendation for Change of Publication.* Route the AF Form 847 through the appropriate chain of command. Ensure all records generated because of processes prescribed in this publication adhere to AFI 33-322, Records Management and Information Governance Program, and are disposed in accordance with the Air Force Records Disposition Schedule, which is located in the Air Force Records Information Management System. See **Attachment 1** for Glossary of References and Supporting Information. The use of the name or mark of any specific manufacturer, commercial product, commodity, or service in this publication does not imply endorsement by the Department of the Air Force.

*SUMMARY OF CHANGES*

This publication has been rewritten and needs to be completely reviewed. Major changes include updating publication dates for references cited, updating the acronym list, and updating responsibilities for the various organizations cited in Section 2.

## 1. General.

1.1. Land use controls, often used interchangeably with institutional controls, are administrative, procedural, and regulatory measures to control human access to and use of property. Land use controls are supplementary to engineering controls for short-term and long-term management to prevent or limit human and environmental exposure to hazardous substances, pollutants, or contaminants. Examples of land use controls include mandatory signage and other communication requirements, limitations on the depth or location of excavations, prohibition of or restrictions on well drilling and use of ground water, management of excavated soils, and prohibition of certain land uses.

1.2. Agreements between the Department of the Air Force and the US Environmental Protection Agency (USEPA) and/or the Alaska Department of Environmental Conservation (ADEC) established land use controls at active and inactive PRSC (formerly 611 Air Support Group) installations. Numerous Environmental Restoration Program sites at Alaska and Pacific remote installations have established land use controls through RODs for Comprehensive Environmental Response, Compensation and Liability Act (CERCLA) sites, or DDs for petroleum-contaminated sites. Landfills, historic/archaeological sites and wetlands, because of other regulatory or managerial requirements, also have land use control requirements. Some sites have interim land use controls to prevent exposures. Land use controls must be in place if a property is not available for unrestricted use or unlimited exposure. They may include temporary or permanent restrictions or requirements. A review of land use controls is required when submitting AF Form 103, *Base Civil Engineering Work Clearance Request,* at any PRSC installation. When all cleanup goals are complete for a given site, regulatory review and approval may remove land use controls from a site.

## 2. Responsibilities:

2.1. When conducting any project or activity on a PRSC installation, all PRSC personnel, tenants, and contractors will comply with all land use controls and applicable AF instructions. PRSC supervisors, chiefs, and managers will provide training in land use control implementation and management to all affected personnel. Base contractors and tenant organizations will have land use control compliance requirements incorporated into their contracts and interagency agreements, as necessary. Failure to comply with land use controls will be grounds for penalty, in accordance with provisions specified in applicable contract documents. At project completion, the PRSC unit, tenant or contractor will sign a certification of land use control compliance and return the document to the Air Force Civil Engineer Center Pacific Environmental Restoration Branch (AFCEC/CZOP).

2.2. Organizations:

2.2.1. Air Force Civil Engineer Center Pacific Environmental Restoration Branch (AFCEC/CZOP):

2.2.1.1. Will provide site-specific land use control requirements for all installations, active and inactive, and identify any known contaminated soil or groundwater sites and monitoring wells for the area of any proposed project and will maintain and update the PRSC Land Use Control Management Plan at the following location: **https://usaf.dps.mil/:f:/r/teams/611CESCEI-AFCECRestoration/Shared%20Documents/Land%20Use%20Control%20Management%20Plan,%20Posters,%20Field%20Guides,%20and%20PRSC%20Instruction?csf=1&web=1&e=cXlTsA**. AFCEC/CZOP must review and sign all AF Form 103 permits for projects requiring excavation activities for land use control compliance prior to project commencement.

2.2.1.2. Will manage Environmental Restoration Program (ERP) sites and projects to obtain site closure when practical according to regulation and AF policy.

2.2.1.3. Will conduct 5-year reviews and other monitoring activities as required by RODs and DDs, as well as interim measures.

2.2.1.4. Will ensure that contracting service centers will program projects as necessary to conduct monitoring activities and long-term management of sites.

2.2.1.5. Will maintain and periodically update the AR of environmental remediation documents, and will provide all in-house, contractor and community members with AR access information as needed.

2.2.1.6. Will prepare annual land use control compliance reports and submit reports to ADEC and/or USEPA in accordance with ROD/DD requirements and regulations.

2.2.1.7. Will disseminate land use control information to personnel involved in land use control management, including the 611th Civil Engineer Squadron (CES) Real Property Office (611 CES/CEIA) for Real Estate issues, the 611th Air Support Squadron Quality Assurance Section (611 ASUS/PKM) for quality assurance checklist items, and the 611th Civil Engineer Squadron Engineering Flight (611 CES/CEN) for inclusion/input in the Geospatial Information System. Provides Project Work Statement contract initial language and any proposed modifications to the 611th Air Support Squadron Program Manager (611 ASUS/PM).

2.2.1.8. Will operate an active community relations program that includes updated fact sheets with land use control information, notices through the installation network and group periodical publications, and land use control management briefs at project kick-off meetings or Restoration Advisory Board meetings.

2.2.1.9. Will maintain copies of signed certifications of compliance, documenting adherence to land use controls during project execution.

2.2.1.10. Will maintain the overall Land Use Control Management Plan and will coordinate revisions as necessary of the Plan and this instruction.

2.2.1.11. Will make recommendations to the PRSC commander for reassignment of responsibilities bulleted in this instruction during any reorganization of the PRSC and/or AFCEC.

2.2.2. 611th Civil Engineer Squadron Natural and Cultural Resources (611 CES/CEIE): Will conduct site visits and documentation reviews as needed to ensure compliance with land use controls not otherwise described in a ROD or DD, including permitted landfills, historic properties, wetlands and wildlife areas.

2.2.2.1. Will provide site-specific land use control requirements for all installations to PRSC personnel, tenants and contractors as needed for activities and project management.

2.2.2.2. Will provide reviews, analyses and consultation for all Categorical Exclusions, Environmental Assessments or Environmental Impact Statements to ensure compliance with AFI 32-7064, *Integrated Natural Resources Management,* AFI 32-7065, *Cultural Resources Management Program*, the National Historic Preservation Act, Archaeological Resources Protection Act, the Native American Graves Protection and Repatriation Act and the Threatened and Endangered Species Act.

2.2.2.3. Will conduct 5-year reviews and other monitoring activities as necessary to verify compliance with the laws and instructions given above.

2.2.3. The 611th Civil Engineer Squadron Engineering Flight (611 CES/CEN) and 611 CES/CEIE:

2.2.3.1. Will incorporate land use controls into District Plans, which will be available to all PRSC personnel, contractors, and site tenants to aid in the installation planning processes and management. Installation projects or proposals for changes in land use or ownership shall reference the District Plans.

2.2.3.2. Will coordinate on any activities or projects which could affect Land use controls, to ensure regulatory compliance with Land use controls.

2.2.3.3. Will require an AF Form 332, *Base Civil Engineer Work Request*, at the initial planning phase of all projects, including those initiated by tenant organizations. If the project is in an area with land use controls, AFCEC/CZOP will coordinate with 611 CES/CEIE to include specific information about the Land use controls in the project location. The 611 CES/CEIE will ensure a project siting review is complete and that AFCEC/CZOP coordinates on the review and the dig permit review and approval process.

2.2.3.4. Real estate instruments shall include land use control information. In accordance with AFI 32-7066, real estate instruments shall include land use and groundwater use restrictions identified in Environmental Baseline Surveys (EBS). The EBS will be included in the real estate transaction AR.

2.2.3.5. Real Estate will notify AFCEC/CZOP at least 12 months prior to any lease, transfer, or sale of Air Force land to coordinate environmental regulatory compliance in the lease, transfer, or sale terms. USEPA and the ADEC will be provided review and comment opportunities regarding federal-to-federal transfers. Land use controls will be included in any Environmental Baseline Survey or Findings of Suitability for Transfer.

2.2.4. 611th Civil Engineer Squadron Engineering Flight (611 CES/CEN):

2.2.4.1. Will ensure compliance with land use controls by incorporating general land use control language, provided by now AFCEC/CZOP, in technical provisions and environmental constraints/protection measures of construction contract documents.

2.2.4.2. Will maintain and revise the PRSC District Plans, in accordance with AFI 32-7062, *Air Force Comprehensive Planning*, to include all available and applicable land use control information as required by RODs, DDs, regulation and Air Force policy.

2.2.4.3. Will inspect and ensure contractors are complying with this Instruction as the Contracting Officer's Technical Representative.

2.2.5. Technical Support (AFCEC/CZOP):

2.2.5.1. Will post a land use control map layer to an interactive map on the installation network, allowing all installation organizations access to use control data on their desktop computers. Land use control data will include boundaries and depths as well as links to details of limitations and controls.

2.2.5.2. As necessary, will incorporate land use controls into installation or site maps for PRSC or contractor personnel for project planning/execution.

2.2.6. 611th Civil Engineer Squadron Operations Flight (611 CES/CEO):

2.2.6.1. Will ensure compliance with land use controls by obtaining the appropriate signatures and concurrences on an AF Form 103, *Base Civil Engineer Work Clearance Request*, or local equivalent, and submit the AF Form 103 to the 611 CES Customer Service office for approval and final signature authority. AFCEC/CZOP must review and sign all AF Form 103 permits for projects requiring excavation activities for land use control compliance prior to project commencement.

2.2.6.2. Will maintain approved and completed AF Form 103 documents, log and file in 611th Civil Engineer Squadron Operations Engineering Customer Service (611 CES/CEOER CSU), and make available these work requests and supporting documents for duplication as needed.

2.2.6.3. Will coordinate use of permits and work requests, modified as necessary, for use as dig permit to include communication of Land use controls and limitations on excavation and other operations/activities.

2.2.6.4. Will ensure compliance by preparing and coordinating AF Form 103 Dig Permit or equivalent for all appropriate excavation activities. AFCEC/CZOP must review and sign all AF Form 103 Dig Permits for projects requiring excavation activities for land use control compliance prior to project commencement.

2.2.6.5. Will revise and coordinate AF Form 103 permits for uniform use on all projects executed at installations in which mechanized equipment penetrates or disturbs the ground, or hand digging that penetrates more than 4 inches below the ground surface.

2.2.7. The 611th Air Support Squadron (611 ASUS):

2.2.7.1. The 611th Air Support Squadron Quality Assurance Section (611 ASUS/PKM):

2.2.7.1.1. Will request staffing assistance from 611 CES to ensure qualified personnel are available for quality assurance teams to verify contractor compliance with land use controls.

2.2.7.1.2. Will annually validate AFCEC provided quality assurance checklist(s) (to be coordinated with AFCEC/CZOP (formerly 611 CES/CEAR) that specifically verify land use control compliance at all installations and sites, as part of the overall Environmental checklist.

2.2.7.1.3. Will conduct land use control compliance verification as part of the regular quality assurance inspection schedule for all PRSC installations and sites and will conduct special land use control compliance verification visits as directed by the PRSC commander.

2.2.7.1.4. Will report to AFCEC/CZOP results of quality assurance inspections with respect to land use controls, including compliance, deficiencies, and recommended updates.

**3. Termination of land use controls at PRSC Installations:**

3.1. The land use controls will terminate as specified in the ROD/DD or applicable documentation when the sites have met required cleanup goals. The PRSC will seek prior concurrence from USEPA and/or the ADEC to terminate land use controls or modify current land uses. In addition, PRSC will seek prior concurrence before any anticipated action that may disrupt the effectiveness of the land use controls, or any action that may alter or be inconsistent with the land use assumptions or land uses described in the respective ROD/DD.

3.2. AFCEC/CZOP will initiate termination of land use controls when a site meets requirements and will coordinate PRSC efforts for termination. AFCEC/CZOP will provide updates to the Environmental Restoration Program AR, as necessary.

3.3. The land use control manager will communicate any changes in land use controls, including efforts to terminate, to all necessary PRSC flights and sections, including 611 CES/CEIA Real Estate for update of the real estate transaction AR.

**4. Information Collections.** No information collections are necessary by this publication.

TIMOTHY J. MEERSTEIN,
Colonel, USAF Commander

## Attachment 1

## GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

***References***

**AFI 32-7020**, *Environmental Restoration Program*, 11 March 2020

**AFI 32-7062**, *Air Force Comprehensive Planning,* 18 December 2015

**AFI 32-7064**, *Integrated Natural Resources Management,* 18 November 2014

**AFI 32-7065**, *Cultural Resources Management Program,* 19 November 2014

**AFI 32-7066**, *Environmental Baseline Surveys in Real Estate Transactions*, 26 January 2015

**AFI 33-322**, Records Management and Information Governance Program, 22 March 2020

**AFMAN 33-363**, *Management of Records*, 8 March 2008

**AFPD 32-70**, *Environmental Considerations in Air Force Programs and Activities*, 29 July 2018

PRSC *Land Use Control Management Plan,* 8 April 2023, **https://usaf.dps.mil/:f:/r/teams/611CESCEI-AFCECRestoration/Shared%20Documents/Land%20Use%20Control%20Management%20Plan,%20Posters,%20Field%20Guides,%20and%20PRSC%20Instruction?csf=1&web=1&e=cXlTsA**

***Prescribed Forms***

None

***Adopted Forms***

**AF Form 103**, *Base Civil Engineer Work Clearance Request*

**AF Form 332**, *Base Civil Engineer Work Request*

**AF Form 847**, *Recommendation for Change of Publication*

***Abbreviations and Acronyms***

**ADEC**—Alaska Department of Environmental Conservation

**AF**—Air Force

**AFCEC**—Air Force Civil Engineer Center

**AFCEC/CZOP**—Air Force Civil Engineer Center Pacific Environmental Restoration Branch

**AFI**—Air Force Instruction

**AFMAN**—Air Force Manual

**AFPD**—Air Force Policy Directive

**AFRIMS**—Air Force Records Information Management System

**AR**—Administrative Record

**CES**—Civil Engineer Squadron

**DD**—Decision Document

**EBS**—Environmental Baseline Survey

**ERP**—Environmental Restoration Program

**JBER**—Joint Base Elmendorf-Richardson

**OPR**—Office of Primary Responsibility

**QA**—Quality Assurance

**PACAF**—Pacific Air Forces

**PRSC**—Pacific Air Forces Regional Support Center

**ROD**—Record of Decision

**USEPA**—US Environmental Protection Agency

***Office Symbols***

**AFCEC/CZOP**—Air Force Civil Engineer Center Pacific Environmental Restoration Branch

**611 ASUS**—611th Air Support Squadron

**611 ASUS/PM**—611th Air Support Squadron Program Manager

**611 ASUS/PKM**—611th Air Support Squadron Quality Assurance Section

**611 CES/CEIA**—611th Civil Engineer Squadron Real Property Office

**611 CES/CEIE**—611th Civil Engineer Squadron Natural and Cultural Resources

**611 CES/CEN**—611th Civil Engineer Squadron Engineering Flight

**611 CES/CEO**—611th Civil Engineer Squadron Operations Flight

**611 CES/CEOER CSU**—611th Civil Engineer Squadron Operations Engineering Customer Service.